



CHAPTER xxxiii.

An Act to confer further powers on the provost magistrates and councillors of the burgh of Govan in connection with their electricity undertaking and for other purposes. A.D. 1904.
[24th June 1904.]

WHEREAS by the Govan Electric Lighting Orders 1892 and 1902 the provost magistrates and councillors (in this Act called "the Town Council") of the burgh of Govan (hereinafter referred to as "the burgh") are authorised to supply and are now supplying electrical energy for public and private purposes within the burgh: 55 & 56 Vict.
c. xxxvi.
2 Edw. 7.
c. clxxxvi.

And whereas it would be of advantage to the burgh and to the consumers of electrical energy therein if the Town Council were empowered to provide and supply electrical fittings and apparatus and to undertake the fixing or installation of such fittings and apparatus and it is expedient that such powers should be conferred on the Town Council and that they should be authorised to expend their funds and borrow money for the purposes thereof:

And whereas it is expedient that the Town Council should be empowered to make special charges for the supply of electrical energy to premises having a separate supply and that such further powers should be conferred on the Town Council in relation to their electricity undertaking as are contained in this Act:

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

A.D. 1904. — and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the Govan Electric Lighting (Further Powers) Act 1904 and the Govan Electric Lighting Orders 1892 and 1902 and this Act may be cited together as the Govan Electric Lighting Acts 1892 to 1904.

Power to provide and fix electric fittings. 2.—(1) The Town Council may in connection with their electricity undertaking purchase provide sell let for hire and fix set up alter repair and remove but shall not manufacture dynamos motors stoves lamps conductors switches meters electric lines fittings machinery apparatus and things (all of which are hereinafter included in the expression “fittings”) for lighting heating and motive power and for all other purposes for which electrical energy can or may be used or which are or may be necessary or convenient for the production storage supply distribution consumption or utilisation of electrical energy and may provide all materials and do all works necessary or proper in that behalf and may demand and take such remuneration in money or such rents and charges for and may make such terms and conditions with respect to the sale letting fixing setting up alteration repair or removal of fittings and for securing (both as regards the consumer and third parties) the safety and return of fittings to the Town Council as the Town Council think fit or as may be agreed upon between them and the person to or for whom the same are sold let fixed set up altered repaired or removed and any remuneration rents or charges payable under the provisions of this section may be recovered by the Town Council in manner provided by the Electric Lighting Act 1882 for the recovery of sums due to undertakers.

(2) No fittings belonging to the Town Council shall be subject to the landlords hypothec for rent or be liable to be taken in execution under any diligence or process of any court or any proceedings in cessio or bankruptcy against any person in whose possession the same may be provided that such fittings are legibly marked with a mark or brand indicating the Town Council as the actual owners thereof.

(3) Any expenses incurred by the Town Council under this section shall be deemed to be expenses incurred by them for the purposes of and shall be defrayed in the same manner as expenses incurred by the Town Council under the Govan Electric Lighting Orders 1892 and 1902 and the purposes of this section shall be

[4 EDW. 7.] *Govan Electric Lighting (Further Powers) Act, 1904.* [Ch. xxxiii.]

deemed to be purposes for which the Town Council may borrow money under the provisions of those Orders and section 8 of the Electric Lighting Act 1882 as amended by the Electric Lighting (Scotland) Act 1902. A.D. 1904.
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(4) All moneys received by the Town Council under this section shall be credited to the revenue or capital account of the electricity undertaking of the Town Council as the case may require and shall be applied in manner provided by section 52 in the case of revenue or section 53 in the case of capital of the Govan Electric Lighting Order 1892.

3. Notwithstanding anything contained in the Govan Electric Lighting Orders 1892 and 1902 or the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Town Council a stand-by supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Town Council such minimum annual sum as will give to the Town Council for such period as may be agreed a reasonable return on the capital expenditure and other standing charges incurred by the Town Council to meet the possible maximum demand of such person. In case the Town Council and the person demanding such supply of electrical energy shall fail to agree as to the amount of such minimum annual sum or the period for which the same shall be paid the same shall be determined by an arbiter to be appointed by the sheriff of the county of Lanark or any of his substitutes on the application of either party. As to supply of electricity where consumer has separate supply.

4. The Town Council may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Town Council for the supply of electrical energy from any person who pays the same within such time of the demand thereof as the Town Council may prescribe in that behalf and notice to this effect shall be endorsed on every demand note in respect of such charges. Provided that the Town Council shall make the same allowance to all consumers under similar circumstances. Discount on electrical energy accounts.

5. The Town Council may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear whether such payment be due to the Town Council in respect of a supply to the same premises in respect of which such supply is demanded or in respect of other premises. Town Council may refuse to supply energy in certain cases.

[Ch. xxxiii.] *Govan Electric Lighting (Further Powers) Act, 1904.* [4 EDW. 7.]

A.D. 1904.

Costs of Act. **6.** All costs charges and expenses attending the preparation obtaining and passing of this Act shall be paid by the Town Council out of the local rate as defined by the Electric Lighting (Scotland) Act 1890.

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